

3.1.1 Requirement of pendency when filing divisional application is not a time limit

According to the established case law (see J 19/10) of the boards of appeal, R 36(1) EPC (and R 25(1) EPC 1973 in its version since 2002) sets a condition, not a time limit, for filing a divisional application to any pending earlier European application, namely that the earlier European patent application is pending. In procedural law, the fact that a conditional act can only be accomplished before a particular set of circumstances foreseen by legal provisions occurs (condition), is conceptually different from a set period of time imposed for doing an act (time limit) (J 24/03, OJ 2004, 544; J 3/04; see also J 10/01; J 18/04, OJ 2006, 560; G 1/09, OJ 2011, 336; J 19/10; J 10/12). R 25(1) EPC 1973 in its version prior to 2002 also did not contain a time limit but identified a point in the grant procedure after which a divisional application could no longer be filed, namely the approval of the text according to R 51(4) EPC 1973 (J 21/96, J 4/02).

3.1.2 Designation of States

In J 3/83 the Legal Board explained that the concept of a time limit within Art. 122 EPC 1973 involved a period of time of a certain duration. In the case of designation of states, there was no such period. States had to be designated at a particular time, see Art. 79(1) EPC 1973. With the EPC 2000 this is no longer an issue, as under the current Art. 79(1) EPC all contracting states party to the EPC at the time when the application is filed are deemed to be designated in the request for grant of a European patent.

3.1.3 "Time limitation" condition for requests for correction

In J 7/90 (OJ 1993, 133) the Legal Board found that the "time limitation" condition imposed under board of appeal case law, which required that, in general, a request for correction of the designation of a state or priority data had to be refused in the public interest if it was not made early enough to enable publication of a warning together with the European patent application, was not a "time limit" within the meaning of Art. 122(1) EPC 1973.

3.2. Time limits excluded from re-establishment under Article 122(4) EPC and Rule 136(3) EPC

Under Art. 122(4) EPC in conjunction with R 136(3) EPC, re-establishment is ruled out in respect of time limits for which further processing is available under Art. 121 EPC, such as the time limits for paying the filing fee, search fee, designation fees and examination fee, and for the time limit for filing the request for examination, as well as any time limit set by the EPO (see also OJ SE 4/2007; for the situation under the EPC 1973, see J 11/86). See also III.E.1. in this chapter.

Re-establishment is also excluded in respect of the time limit for requesting re-establishment (R 136(3) EPC; this was also the case under the EPC 1973, see T 900/90), but is possible for the time limit for requesting further processing (see Art. 121(4) EPC; this was also the case under the EPC 1973, see J 12/92; J ..87 (idem J 902/87), OJ 1988, 323; J 29/94, OJ 1998, 147).

In contrast to the situation under the EPC 1973, re-establishment in respect of the priority period (Art. 87(1) EPC) is possible under the EPC 2000. This change to the EPC has no implications for the interpretation of Art. 122(5) EPC 1973, which clearly rules out the time limit under Art. 87(1) EPC 1973 (see J 9/07). The case law which excluded the grace periods under R. 85a and R. 85b EPC 1973 from re-establishment is now obsolete as these provisions have been deleted. Issues concerning the exclusion of PCT time limits under Art. 122(5) EPC 1973 are no longer likely to arise since the coming into force of the EPC 2000; for a detailed summary of the case law (G 3/91, OJ 1993, 8; G 5/92 and G 6/92, OJ 1994, 22 and 25; G 5/93, OJ 1994, 447; J 1/03; T 227/97, OJ 1999, 495) see "Case Law of the Boards of Appeal", 5th ed. 2006, VI.E.3; for a short summary see "Case Law of the Boards of Appeal", 6th ed. 2010, VI.E.4

3.3. Time limits concerning the PCT proceedings

Art. 48(2)(a) PCT states that any contracting state shall, as far as that state is concerned, excuse, for reasons admitted under its national law, any delay in meeting any time limit (see also R. 82bis.2 PCT). Consequently, a Euro-PCT applicant who has not carried out a certain procedural act within the time limit prescribed in the PCT can take advantage of the relevant provisions of the EPC concerning re-establishment of rights in all cases where the direct European applicant too may invoke them if he fails to observe the relevant time limit (see G 3/91, OJ 1993, 8; G 5/93, OJ 1994, 447; J 13/16).

In J 13/16 the Legal Board held that it would be inconsistent with the well-established principle of equal treatment between direct European applicants and Euro-PCT applicants if Euro-PCT applicants could be re-established in respect of the period under R. 49ter.2(b)(i) PCT for filing a request for restoration of the right of priority when, for direct European applicants, re-establishment is ruled out in respect of the period for requesting re-establishment under Art. 122(4) and R. 136(3) EPC. Therefore, in proceedings before the EPO, re-establishment of rights under Art. 122 EPC is ruled out in respect of the period under R. 49ter.2(b)(i) PCT for filing a request for restoration of right of priority.

In J 6/79 the Legal Board held that *restitutio in integrum* was not excluded, so far as the time limit for presentation of the request for examination is concerned, in the case of an international application transmitted to the EPO.

In W 4/87 (OJ 1988, 425) the board decided that an application for *restitutio in integrum* could be submitted in cases where the statement of grounds supporting the protest under R. 40.2(c) PCT was submitted late, since Art. 122 EPC 1973 applied in conjunction with Art. 48(2) PCT.

In T 227/97 (OJ 1999, 495), the board held that the provisions of Art. 122 EPC 1973 were applicable to the time limit set by R. 13bis.4 PCT. For re-establishment in respect of the time limit, set under former R. 40.3 PCT, for the protest against the invitation to pay an additional search fee, see W 3/93 (OJ 1994, 931).

3.4. Loss of rights as a direct consequence by virtue of the EPC

Under Art. 122(1) EPC rights cannot be re-established unless they have previously been lost as a direct consequence of the non-observance of a time limit vis-à-vis the EPO.

In J 1/80 (OJ 1980, 289) certified copies of priority documents had not been filed within the 16-month period provided for in R. 38(3) EPC 1973. The Legal Board of Appeal found that, according to the Convention, there was a deficiency only if the priority documents had not been filed by the end of the period. It could only be said that there was a deficiency thereafter and the applicant should have been given an opportunity to remedy that deficiency within a further period (Art. 91(2), R. 41(1), 84 EPC 1973). There could only be a loss of rights if the applicant did not then take advantage of this opportunity.

In J 23/14 the Legal Board held that, notwithstanding the wording of Art. 86(1) EPC 2000 and R. 51 EPC (in the version in force until 31 December 2016), and for the sake of the protection of legitimate expectations of the users of the European patent system, a patent application was deemed to be withdrawn only upon expiry of the six-month grace period for paying the renewal fee with additional fee under R. 51(2) EPC, in accordance with the case law that prevailed before decision T 1402/13 of 31 May 2016. See also J 7/16.

In T 1403/16 the board found that one of the basic preconditions for applying Art. 122(1) EPC was not fulfilled in the case in hand, namely that non-compliance with the time limit lead directly to a loss of rights. In opposition proceedings, in the event of a failure to reply in due time to a communication from the opposition division, there is no loss of rights which occurs automatically by operation of law. The board held that re-establishment of rights was not available in the event of non-compliance with a time limit set in a communication under Art. 101(1) EPC. This conclusion equally applied to the time limit under R. 84(1) EPC.

4. Admissibility of requests for re-establishment of rights

4.1. Time limits for filing a request for re-establishment (Rule 136(1) EPC)

The time limits for filing a request for re-establishment are set out in R. 136(1) EPC (see also Art. 122(2) EPC 1973). In principle, a request must be filed within two months of removal of the cause of non-compliance and, at the latest, within one year after expiry of the unobserved time limit; R. 136(1), second sentence, EPC provides for two exceptions: a request for re-establishment in respect of the periods specified in Art. 87(1) EPC (priority) and Art. 112a(4) EPC (petition for review by the Enlarged Board of Appeal) must be filed within two months of expiry of the unobserved time limit. Hence the case law summarised in this chapter III.E.4.1.1 is not applicable to such cases, but the principles laid down in this chapter III.E.4.1.2 are likely to be transferable to the two-month period under R. 136(1), second sentence, EPC. Under R. 136(1), third sentence, EPC, the request for re-establishment of rights is not deemed to have been filed until the prescribed fee has been paid.

4.1.1 Two-month time limit from the removal of the cause of non-compliance

The one-year period is not an alternative to the two-month period; a request has to be filed within two months of the removal of the cause of non-compliance, and no request can be filed more than one year after expiry of the unobserved time limit (J 11/17).

The two-month time limit also applies if the time limits under Art. 102(4) and (5) EPC 1973 have been missed, even if no decision has yet been handed down concerning revocation (G 1/90, OJ 1991, 275). The omitted act must be completed within the same period. The fee for re-establishment of rights is also payable within the same time limit as that stipulated by Art. 122(2) EPC 1973 for the filing of an application for re-establishment (J 18/03).

a) Removal of the cause of non-compliance

In most cases the "cause of non-compliance with the time limit" involves some error in the carrying-out of the party's intention to comply with the time limit (J 29/86, OJ 1988, 84; regarding other possible causes of non-compliance see also in this chapter III.E.4.2. "Inability to observe a time limit").

The removal of the cause of non-compliance occurs on the date on which the person responsible for the application (the patent applicant or his professional representative) is made aware of the fact that a time limit has not been observed (see T 191/82, OJ 1985, 189; T 287/84, OJ 1985, 333; J 29/86, OJ 1988, 84; J 27/88, J 27/90, OJ 1993, 422).

(i) Date of the removal of the cause of non-compliance

In J 1/20 the Legal Board set out that, in its view, to correctly assess admissibility of a request for re-establishment of rights, it must first be established: (i) who was the person responsible for the application; and (ii) when this person was actually made aware of the cause of non-compliance. Removal of the cause of non-compliance is a question of fact, the answer to which thus depends on the relevant person actually becoming aware that a time limit has not been observed, e.g. actual receipt of a communication under R. 112(1) EPC, rather than on a legal fiction of awareness, e.g. deemed notification of the communication pursuant to R. 126(2) EPC. Removal occurs on the date on which the person responsible for the application/patent (normally the authorised representative) becomes aware of an error.

According to earlier decisions, the decisive factor was the time when the person concerned ought to have noticed the error if they had taken all due care (see e.g. J 27/88, J 5/94, T 315/90, T 840/94, J 24/97, J 27/01, T 1026/06, T 493/08, J 1/13, T 1588/15). In J 1/20 the Legal Board considered that this approach did not lead to a correct determination of the date of removal of the cause of non-compliance. In J 27/90 (OJ 1993, 422), the Legal Board stated that the removal of the cause of non-compliance was a matter of fact which had to be determined in the individual circumstances of each case (see also J 7/82, OJ 1982, 391; J 16/93; T 900/90; T 832/99; J 21/10; T 387/11; T 1588/15). In the case of

an error of facts the removal occurred on the date on which any person responsible for a patent application should have discovered the error made. This was not necessarily the date of receipt of the communication under R. 112(1) EPC (R. 69(1) EPC 1973) (see T 315/90, J 21/10). If, however, such a communication had duly been served, it may, in the absence of circumstances to the contrary, be assumed that the removal was effected by this communication (see also J 7/82, OJ 1982, 391; J 29/86, OJ 1988, 84; T 900/90; J 27/90; J 16/93; T 428/98, OJ 2001, 494; T 832/99; J 11/03).

In T 261/07, relying on T 949/94 of 24 March 1995, the patentee argued that it had only become aware of an oversight once it was established that the decision of the opposition division had indeed been received. The board however took the view that the cause of non-compliance was removed as soon as the patentee noticed via a file inspection "that something was amiss" (see J 9/86, J 17/89, T 191/82).

In T 198/16 the board stated that the practice of applying the due-care requirement in the context of removal of the cause of non-compliance with a period within the meaning of R. 136(1) EPC could well be seen as extending the meaning of the due-care requirement in a way that enlarges the scope of the essentially substantive criterion by adding to it the function of an extraordinary preliminary admissibility/applicability hurdle. The board stated that this approach to the "removal" criterion, which could not be based on the letter of the law, was therefore doubtful. The board left open the question as to the approach to be followed.

(ii) Presumption as to date of the removal of the cause of non-compliance

If a loss-of-rights communication (R. 112(1) EPC) is served there is: (i) a presumption that removal occurs on the date of receipt of such communication; and (ii) an obligation for the recipient not to ignore it, and to take action. This presumption is, however, rebuttable, in the sense that it is valid unless, due to exceptional circumstances, the cause for non-compliance persisted (J 1/20, T 1588/15). In J 29/86 (OJ 1988, 84) the Legal Board assumed a later date in view of the special circumstances of the case. In T 900/90 the board emphasised that in all cases in which the receipt of the notification under R. 69(1) EPC 1973 (R. 112(1) EPC) could be regarded as the removal of the cause of non-compliance it had to be clearly established that neither the representative nor the applicant was aware that the application had been deemed to be withdrawn before the receipt of that notification. Other cases in which the boards agreed to a date different from that of the receipt of the communication under R. 69(1) EPC 1973 (R. 112(1) EPC) include J 16/93, J 22/97, J 7/99, J 19/04, T 24/04 and T 170/04.

In T 1570/20, the cause of non-compliance was removed on the date the European professional representative became aware of the loss of rights, i.e. upon receipt of the loss-of-rights communication. Removal of the cause of non-compliance did not require any additional knowledge by the professional representative about possible reasons for the loss of rights, such as whether the non-payment of fees was intentional or not. Rather, it was sufficient that the professional representative became aware of the fact that a time limit, with regard to which re-establishment of rights was requested later on, had not been